

The Right to Ignore the State

Herbert Spencer

Project Gutenberg

The Right to Ignore the State

Herbert Spencer

Project Gutenberg

The Project Gutenberg eBook of The Right to Ignore the State

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: The Right to Ignore the State

Author: Herbert Spencer

Release date: December 14, 2010 [eBook #34649]

Language: English

Original publication: London: Freedom Press,, 1913

Other information and formats: www.gutenberg.org/ebooks/34649

Credits: Produced by Fritz Ohrenschall, Keith Edkins and the Online Distributed Proofreading Team at <http://www.pgdp.net> (This file was produced from images generously made available by The Internet Archive)

*** START OF THE PROJECT GUTENBERG EBOOK THE RIGHT TO
IGNORE THE STATE ***

Freedom Pamphlet.

PRICE ONE PENNY.

THE RIGHT TO IGNORE THE STATE.

BY

HERBERT SPENCER.

(Reprinted from "Social Statics," 1850 Edition.)

LONDON.

FREEDOM PRESS, 127 OSSULSTON STREET, N. W.

1913.

[It is only fair to the memory of Mr. Herbert Spencer that we should warn the reader of the following chapter from the original edition of Mr. Spencer's "Social Statics," written in 1850, that it was omitted by the author from the revised edition, published in 1892. We may legitimately infer that this omission indicates a change of view. But to repudiate is not to answer, and Mr. Spencer never answered his arguments for the right to ignore the State. It is the belief of the Anarchists that these arguments are unanswerable.]

The Right to Ignore the State.

§ 1. As a corollary to the proposition that all institutions must be subordinated to the law of equal freedom, we cannot choose but admit the right of the citizen to adopt a condition of voluntary outlawry. If every man has freedom to do all that he wills, provided he infringes not the equal freedom of any other man, then he is free to drop connection with the State,—to relinquish its protection and to refuse paying towards its support. It is self-evident that in so behaving he in no way trenches upon the liberty of others; for his position is a passive one, and, whilst passive, he cannot become an aggressor. It is equally self-evident that he cannot be compelled to continue one of a political corporation without a breach of the moral law, seeing that citizenship involves payment of taxes; and the taking away of a man's property against his will is an infringement of his rights. Government being simply an agent employed in common by a number of individuals to secure to them certain advantages, the very nature of the connection implies that it is for each to say whether he will employ such an agent or not. If any one of them determines to ignore this mutual-safety confederation, nothing can be said, except that he loses all claim to its good offices, and exposes himself to the danger of maltreatment,—a thing he is quite at liberty to do if he likes. He cannot be coerced into political combination without a breach of the law of equal freedom; he *can* withdraw from it without committing any such breach; and he has therefore a right so to withdraw.

§ 2. "No human laws are of any validity if contrary to the law of nature: and such of them as are valid derive all their force and all their authority mediately or immediately from this original." Thus writes Blackstone, to whom let all honour be given for having so far outseen the ideas of his time,—and, indeed, we may say of our time. A good antidote, this, for those political superstitions which so widely prevail. A good check upon that sentiment of power-worship which still misleads us by magnifying the prerogatives of constitutional governments as it once did those of monarchs. Let men learn that a legislature is *not* "our God upon earth," though, by the authority they ascribe to it and the things they expect from it, they would seem to think it is. Let them learn rather that it is an institution serving a

purely temporary purpose, whose power, when not stolen, is, at the best, borrowed.

Nay, indeed, have we not seen that government is essentially immoral? Is it not the offspring of evil, bearing about it all the marks of its parentage? Does it not exist because crime exists? Is it not strong, or, as we say, despotic, when crime is great? Is there not more liberty—that is, less government—as crime diminishes? And must not government cease when crime ceases, for very lack of objects on which to perform its function? Not only does magisterial power exist *because* of evil, but it exists *by* evil. Violence is employed to maintain it; and all violence involves criminality. Soldiers, policemen, and gaolers; swords, batons, and fetters,—are instruments for inflicting pain; and all infliction of pain is, in the abstract, wrong. The State employs evil weapons to subjugate evil, and is alike contaminated by the objects with which it deals and the means by which it works. Morality cannot recognise it; for morality, being simply a statement of the perfect law, can give no countenance to anything growing out of, and living by, breaches of that law. Wherefore legislative authority can never be ethical—must always be conventional merely.

Hence there is a certain inconsistency in the attempt to determine the right position, structure, and conduct of a government by appeal to the first principles of rectitude. For, as just pointed out, the acts of an institution which is, in both nature and origin, imperfect cannot be made to square with the perfect law. All that we can do is to ascertain, firstly, in what attitude a legislature must stand to the community to avoid being by its mere existence an embodied wrong; secondly, in what manner it must be constituted so as to exhibit the least incongruity with the moral law; and, thirdly, to what sphere its actions must be limited to prevent it from multiplying those breaches of equity it is set up to prevent.

The first condition to be conformed to before a legislature can be established without violating the law of equal freedom is the acknowledgment of the right now under discussion—the right to ignore the State.

§ 3. Upholders of pure despotism may fitly believe State-control to be unlimited and unconditional. They who assert that men are made for

governments and not governments for men may consistently hold that no one can remove himself beyond the pale of political organisation. But they who maintain that the people are the only legitimate source of power—that legislative authority is not original, but deputed—cannot deny the right to ignore the State without entangling themselves in an absurdity.

For, if legislative authority is deputed, it follows that those from whom it proceeds are the masters of those on whom it is conferred: it follows further that as masters they confer the said authority voluntarily: and this implies that they may give or withhold it as they please. To call that deputed which is wrenched from men whether they will or not is nonsense. But what is here true of all collectively is equally true of each separately. As a government can rightly act for the people only when empowered by them, so also can it rightly act for the individual only when empowered by him. If A, B, and C debate whether they shall employ an agent to perform for them a certain service, and if, whilst A and B agree to do so, C dissents, C cannot equitably be made a party to the agreement in spite of himself. And this must be equally true of thirty as of three: and, if of thirty, why not of three hundred, or three thousand, or three millions?

§ 4. Of the political superstitions lately alluded to, none is so universally diffused as the notion that majorities are omnipotent. Under the impression that the preservation of order will ever require power to be wielded by some party, the moral sense of our time feels that such power cannot rightly be conferred on any but the largest moiety of society. It interprets literally the saying that "the voice of the people is the voice of God," and, transferring to the one the sacredness attached to the other, it concludes that from the will of the people—that is, of the majority—there can be no appeal. Yet is this belief entirely erroneous.

Suppose, for the sake of argument, that, struck by some Malthusian panic, a legislature duly representing public opinion were to enact that all children born during the next ten years should be drowned. Does any one think such an enactment would be warrantable? If not, there is evidently a limit to the power of a majority. Suppose, again, that of two races living together—Celts and Saxons, for example—the most numerous determined to make the

others their slaves. Would the authority of the greatest number be in such case valid? If not, there is something to which its authority must be subordinate. Suppose, once more, that all men having incomes under £50 a year were to resolve upon reducing every income above that amount to their own standard, and appropriating the excess for public purposes. Could their resolution be justified? If not, it must be a third time confessed that there is a law to which the popular voice must defer. What, then, is that law, if not the law of pure equity—the law of equal freedom? These restraints, which all would put to the will of the majority, are exactly the restraints set up by that law. We deny the right of a majority to murder, to enslave, or to rob, simply because murder, enslaving, and robbery are violations of that law—violations too gross to be overlooked. But, if great violations of it are wrong, so also are smaller ones. If the will of the many cannot supersede the first principle of morality in these cases, neither can it in any. So that, however insignificant the minority, and however trifling the proposed trespass against their rights, no such trespass is permissible.

When we have made our constitution purely democratic, thinks to himself the earnest reformer, we shall have brought government into harmony with absolute justice. Such a faith, though perhaps needful for the age, is a very erroneous one. By no process can coercion be made equitable. The freest form of government is only the least objectionable form. The rule of the many by the few we call tyranny: the rule of the few by the many is tyranny also, only of a less intense kind. "You shall do as we will, and not as you will," is in either case the declaration; and, if the hundred make it to ninety-nine, instead of the ninety-nine to the hundred, it is only a fraction less immoral. Of two such parties, whichever fulfils this declaration necessarily breaks the law of equal freedom: the only difference being that by the one it is broken in the persons of ninety-nine, whilst by the other it is broken in the persons of a hundred. And the merit of the democratic form of government consists solely in this,—that it trespasses against the smallest number.

The very existence of majorities and minorities is indicative of an immoral state. The man whose character harmonises with the moral law, we found to be one who can obtain complete happiness without diminishing the happiness of his fellows. But the enactment of public arrangements by vote implies a society consisting of men otherwise constituted—implies that the

desires of some cannot be satisfied without sacrificing the desires of others—implies that in the pursuit of their happiness the majority inflict a certain amount of *unhappiness* on the minority—implies, therefore, organic immorality. Thus, from another point of view, we again perceive that even in its most equitable form it is impossible for government to dissociate itself from evil; and further, that, unless the right to ignore the State is recognised, its acts must be essentially criminal.

§ 5. That a man is free to abandon the benefits and throw off the burdens of citizenship, may indeed be inferred from the admissions of existing authorities and of current opinion. Unprepared as they probably are for so extreme a doctrine as the one here maintained, the Radicals of our day yet unwittingly profess their belief in a maxim which obviously embodies this doctrine. Do we not continually hear them quote Blackstone's assertion that "no subject of England can be constrained to pay any aids or taxes even for the defence of the realm or the support of government, but such as are imposed by his own consent, or that of his representative in Parliament"? And what does this mean? It means, say they, that every man should have a vote. True: but it means much more. If there is any sense in words, it is a distinct enunciation of the very right now contended for. In affirming that a man may not be taxed unless he has directly or indirectly given his consent, it affirms that he may refuse to be so taxed; and to refuse to be taxed is to cut all connection with the State. Perhaps it will be said that this consent is not a specific, but a general, one, and that the citizen is understood to have assented to every thing his representative may do, when he voted for him. But suppose he did not vote for him; and on the contrary did all in his power to get elected some one holding opposite views—what then? The reply will probably be that by taking part in such an election, he tacitly agreed to abide by the decision of the majority. And how if he did not vote at all? Why then he cannot justly complain of any tax, seeing that he made no protest against its imposition. So, curiously enough, it seems that he gave his consent in whatever way he acted—whether he said "Yes," whether he said "No," or whether he remained neuter! A rather awkward doctrine, this. Here stands an unfortunate citizen who is asked if he will pay money for a certain proffered advantage; and, whether he employs the only means of expressing his refusal or does not employ it, we are told that he practically agrees, if only the number of others who agree is greater than the

number of those who dissent. And thus we are introduced to the novel principle that A's consent to a thing is not determined by what A says, but by what B may happen to say!

It is for those who quote Blackstone to choose between this absurdity and the doctrine above set forth. Either his maxim implies the right to ignore the State, or it is sheer nonsense.

§ 6. There is a strange heterogeneity in our political faiths. Systems that have had their day, and are beginning here and there to let the daylight through, are patched with modern notions utterly unlike in quality and colour; and men gravely display these systems, wear them, and walk about in them, quite unconscious of their grotesqueness. This transition state of ours, partaking as it does equally of the past and the future, breeds hybrid theories exhibiting the oddest union of bygone despotism and coming freedom. Here are types of the old organisation curiously disguised by germs of the new—peculiarities showing adaptation to a preceding state modified by rudiments that prophesy of something to come—making altogether so chaotic a mixture of relationships that there is no saying to what class these births of the age should be referred.

As ideas must of necessity bear the stamp of the time, it is useless to lament the contentment with which these incongruous beliefs are held. Otherwise it would seem unfortunate that men do not pursue to the end the trains of reasoning which have led to these partial modifications. In the present case, for example, consistency would force them to admit that, on other points besides the one just noticed, they hold opinions and use arguments in which the right to ignore the State is involved.

For what is the meaning of Dissent? The time was when a man's faith and his mode of worship were as much determinable by law as his secular acts; and, according to provisions extant in our statute-book, are so still. Thanks to the growth of a Protestant spirit, however, we have ignored the State in this matter—wholly in theory, and partly in practice. But how have we done so? By assuming an attitude which, if consistently maintained, implies a right to ignore the State entirely. Observe the positions of the two parties. "This is your creed," says the legislator; "you must believe and openly profess what is here set down for you." "I shall not do anything of the kind,"

answers the Nonconformist; "I will go to prison rather." "Your religious ordinances," pursues the legislator, "shall be such as we have prescribed. You shall attend the churches we have endowed, and adopt the ceremonies used in them." "Nothing shall induce me to do so," is the reply; "I altogether deny your power to dictate to me in such matters, and mean to resist to the uttermost." "Lastly," adds the legislator, "we shall require you to pay such sums of money toward the support of these religious institutions as we may see fit to ask." "Not a farthing will you have from me," exclaims our sturdy Independent; "even did I believe in the doctrines of your church (which I do not), I should still rebel against your interference; and, if you take my property, it shall be by force and under protest."

What now does this proceeding amount to when regarded in the abstract? It amounts to an assertion by the individual of the right to exercise one of his faculties—the religious sentiment—without let or hindrance, and with no limit save that set up by the equal claims of others. And what is meant by ignoring the State? Simply an assertion of the right similarly to exercise *all* the faculties. The one is just an expansion of the other—rests on the same footing with the other—must stand or fall with the other. Men do indeed speak of civil and religious liberty as different things: but the distinction is quite arbitrary. They are parts of the same whole, and cannot philosophically be separated.

"Yes they can," interposes an objector; "assertion of the one is imperative as being a religious duty. The liberty to worship God in the way that seems to him right, is a liberty without which a man cannot fulfil what he believes to be divine commands, and therefore conscience requires him to maintain it." True enough; but how if the same can be asserted of all other liberty? How if maintenance of this also turns out to be a matter of conscience? Have we not seen that human happiness is the divine will—that only by exercising our faculties is this happiness obtainable—and that it is impossible to exercise them without freedom? And, if this freedom for the exercise of faculties is a condition without which the divine will cannot be fulfilled, the preservation of it is, by our objector's own showing, a duty. Or, in other words, it appears not only that the maintenance of liberty of action *may* be a point of conscience, but that it *ought* to be one. And thus we are clearly shown that the claims to ignore the State in religious and in secular matters are in essence identical.

The other reason commonly assigned for nonconformity admits of similar treatment. Besides resisting State dictation in the abstract, the Dissenter resists it from disapprobation of the doctrines taught. No legislative injunction will make him adopt what he considers an erroneous belief; and, bearing in mind his duty toward his fellow-men, he refuses to help through the medium of his purse in disseminating this erroneous belief. The position is perfectly intelligible. But it is one which either commits its adherents to civil nonconformity also, or leaves them in a dilemma. For why do they refuse to be instrumental in spreading error? Because error is adverse to human happiness. And on what ground is any piece of secular legislation disapproved? For the same reason—because thought adverse to human happiness. How then can it be shown that the State ought to be resisted in the one case and not in the other? Will any one deliberately assert that, if a government demands money from us to aid in *teaching* what we think will produce evil, we ought to refuse it, but that, if the money is for the purpose of *doing* what we think will produce evil, we ought not to refuse it? Yet such is the hopeful proposition which those have to maintain who recognise the right to ignore the State in religious matters, but deny it in civil matters.

§ 7. The substance of this chapter once more reminds us of the incongruity between a perfect law and an imperfect State. The practicability of the principle here laid down varies directly as social morality. In a thoroughly vicious community its admission would be productive of anarchy.^[1] In a completely virtuous one its admission will be both innocuous and inevitable. Progress toward a condition of social health—a condition, that is, in which the remedial measures of legislation will no longer be needed—is progress toward a condition in which those remedial measures will be cast aside, and the authority prescribing them disregarded. The two changes are of necessity co-ordinate. That moral sense whose supremacy will make society harmonious and government unnecessary is the same moral sense which will then make each man assert his freedom even to the extent of ignoring the State—is the same moral sense which, by deterring the majority from coercing the minority, will eventually render government impossible. And, as what are merely different manifestations of the same sentiment must bear a constant ratio to each other, the tendency to repudiate governments will increase only at the same rate that governments become needless.

Let not any be alarmed, therefore, at the promulgation of the foregoing doctrine. There are many changes yet to be passed through before it can begin to exercise much influence. Probably a long time will elapse before the right to ignore the State will be generally admitted, even in theory. It will be still longer before it receives legislative recognition. And even then there will be plenty of checks upon the premature exercise of it. A sharp experience will sufficiently instruct those who may too soon abandon legal protection. Whilst, in the majority of men, there is such a love of tried arrangements, and so great a dread of experiments, that they will probably not act upon this right until long after it is safe to do so.

Anarchist Communism.^[2]

ITS AIMS AND PRINCIPLES.

Anarchism may be briefly defined as the negation of all government and all authority of man over man; Communism as the recognition of the just claim of each to the fullest satisfaction of all his needs—physical, moral, and intellectual. The Anarchist, therefore, whilst resisting as far as possible all forms of coercion and authority, repudiates just as firmly even the suggestion that he should impose himself upon others, realising as he does that this fatal propensity in the majority of mankind has been the cause of nearly all the misery and bloodshed in the world. He understands just as clearly that to satisfy his needs without contributing, to the best of his ability, his share of labour in maintaining the general well-being, would be to live at the expense of others—to become an exploiter and live as the rich drones live to-day. Obviously, then, government on the one hand and private ownership of the means of production on the other, complete the vicious circle—the present social system—which keeps mankind degraded and enslaved.

There will be no need to justify the Anarchist's attack upon *all* forms of government: history teaches the lesson he has learned on every page. But that lesson being concealed from the mass of the people by interested advocates of "law and order," and even by many Social Democrats, the Anarchist deals his hardest blows at the sophisms that uphold the State, and urges workers in striving for their emancipation to confine their efforts to the economic field.

It follows, therefore, that politically and economically his attitude is purely revolutionary; and hence arises the vilification and misrepresentation that Anarchism, which denounces all forms of social injustice, meets with in the press and from public speakers.

Rightly conceived, Anarchism is no mere abstract ideal theory of human society. It views life and social relations with eyes disillusioned. Making an end of all superstitions, prejudices, and false sentiments, it tries to see

things as they really are; and without building castles in the air, it finds by the simple correlation of established facts that the grandest possibilities of a full and free life can be placed within the reach of all, once that monstrous bulwark of all our social iniquities—the State—has been destroyed, and common property declared.

By education, by free organisation, by individual and associated resistance to political and economic tyranny, the Anarchist hopes to achieve his aim. The task may seem impossible to many, but it should be remembered that in science, in literature, in art, the highest minds are with the Anarchists or are imbued with distinct Anarchist tendencies. Even our bitterest opponents admit the beauty of our "dream," and reluctantly confess that it would be well for humanity if it were "possible." Anarchist Communist propaganda is the intelligent, organised, determined effort to realise the "dream," and to ensure that freedom and well-being for all *shall* be possible.

Modern Science and Anarchism.

By PETER KROPOTKIN.

A New and Revised Translation, with three additional chapters, and a useful and interesting Glossary.

112 pages; Paper Covers, 6d. net; also in Art Cambric, 1s. 6d. net. Postage, paper 1½d., cloth 3d.

"As a survey of modern science in relation to society ... this book would be hard to beat.... The glossary of about 16 crowded pages is alone worth the price of the volume."—*Maoriland Worker*.

The Conquest of Bread.

By PETER KROPOTKIN.

A New and Cheaper Edition. Cloth, 1s. net; postage 2½d.



God and the State.

By MICHAEL BAKUNIN.

*A new edition, revised from the original Manuscript.
With a new Portrait.*

Paper cover, 6d. net; cloth, 1s. net. Postage 1d. and 2d.

LIBERTY AND THE GREAT LIBERTARIANS.

An Anthology on Liberty.

Edited and Compiled, with Preface, Introduction, and Index, by
CHARLES T. SPRADING.

Presenting quickly and succinctly the best utterances of the greatest thinkers on every phase of human freedom. Many valuable quotations from suppressed, ignored, and hitherto inaccessible sources.

Price 6s. 6d. net, postage 4d.

FREEDOM PRESS, 127 OSSULSTON STREET, LONDON, N.W.

Transcriber's note: on the image used for this edition, this page was partly obscured by binding tape. Unrealisable sections are marked ...

FREEDOM.

A JOURNAL OF ANARCHIST COMMUNISM.

(Established 1886.)

Monthly, 1d. Annual Subscription, 1s. 6d. post free

PAMPHLET AND BOOK LIST.

ANARCHIST COMMUNISM. By PETER KROPOTKIN. 1d.

ANARCHISM. By PETER KROPOTKIN. 1d.

ANARCHIST MORALITY. By PETER KROPOTKIN. 1d.

THE WAGE SYSTEM. By PETER KROPOTKIN. 1d.

A TALK ABOUT ANARCHIST COMMUNISM BETWEEN TWO WORKERS. By E. MALATESTA. 1d.

THE STATE: ITS HISTORIC ROLE. By PETER KROPOTKIN. ...

EXPROPRIATION. By PETER KROPOTKIN. 1d.

LAW AND AUTHORITY. By PETER KROPOTKIN. 2d.

THE PYRAMID OF TYRANNY. By D. NIEUWENHUIS. ...

THE PLACE OF ANARCHISM IN SOCIALISTIC EVOLUTION. By PETER KROPOTKIN. 1d.

AN APPEAL TO THE YOUNG. By PETER KROPOTKIN ...

THE COMMUNE OF PARIS. By PETER KROPOTKIN ...

EVOLUTION AND REVOLUTION. BY ELISÉE RECLUS ...

THE SOCIAL GENERAL STRIKE. By A. ROLLER ...

THE CHICAGO MARTYRS. With Portraits. 1d.

DIRECT ACTION v. LEGISLATION. By J. BLAIR SMITH. ...

WARS AND CAPITALISM. By P. KROPOTKIN. 1d

THE GREAT FRENCH REVOLUTION, 1789-1793 By PETER KROPOTKIN. 6s. net; postage 4d.

MUTUAL AID. By PETER KROPOTKIN. 3s. 6d. postage ...

FIELDS, FACTORIES, AND WORKSHOPS. By PETER KROPOTKIN. Cloth, 1s. net, postage 3d.

ANARCHISM. By Dr. PAUL ELTZBACHER. With ... 6s. 6d. net, postage 4d.

NEWS FROM NOWHERE. By WM. MORRIS. Cloth ... paper 1s.; postage 2d.

FAMOUS SPEECHES OF THE EIGHT CHICAGO ANARCHISTS. 1s. 3d., postage 2d.

Orders, with cash (postage ½d. each pamphlet), to FREEDOM PRESS, 127 OSSULSTON STREET, LONDON, N.W.

Notes

[1] Mr. Spencer here uses the word "anarchy" in the sense of disorder.

[2] It would be only fair to state that the Individualist school of Anarchism, which includes many eminent writers and thinkers, differs from us mainly on the question of Communism—*i.e.*, on

the holding of property, the remuneration of labour, etc. Anarchism, however, affords the opportunity for experiment in all these matters, and in that sense there is no dispute between us.

*** END OF THE PROJECT GUTENBERG EBOOK THE RIGHT TO
IGNORE THE STATE ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the

collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with

this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official

version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, “Information about donations to the Project Gutenberg Literary Archive Foundation.”
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.

- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES

EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a)

distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact

links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility: www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.